2514

Executive Order

Relating to Conditions of Employment in the Panama Canal Service.

By virtue of the authority vested in me by law, the general conditions of employment governing employees on the Isthmus of Panama, necessary for the completion, care, management, maintenance, sanitation, government and operation of the Panama Canal, the Canal Zone, the Panama Railroad, and other adjuncts, provided by the Executive Order of February 2, 1914, are hereby amended by rescinding paragraphs numbered 22 to 41, inclusive, and substituting in lieu of such rescinded paragraphs the following:

ANNUAL LEAVE.

22. Twenty-four days annual leave will be allowed each employee for each year after entry into service and any annual leave not used prior to the end of the service year in which it is earned shall be thereafter in the same status and subject to the same rules as cumulative leave.

23. The service year shall date from the day on which an employee's pay in the permanent organization begins.

24. Absences of one-half day or more, when regularly authorized, will be charged against annual leave; also absences on account of illness or injury, upon the certificate of an authorized physician in the service of The Panama Canal, except that in the following classes of cases no payment shall be made for time lost, but the time shall be charged against the annual leave:

(a) Illness due to the fault of the employee, as venereal disease and alcoholism.

(b) Injury due to the employee's willful intention to bring about the injury or death of himself or another.

(c) Elective surgical operations to relieve conditions existing prior to service on the Isthmus.

25. Teachers employed only during the school months, from October to June, inclusive, may be granted not to exceed twenty-four days leave within those months to cover illness or emergency, but will not be entitled to any other leave with pay and will be entitled to no leave with pay from July to September, inclusive.

26. In the cases of hourly and per diem employees annual leave on account of sickness or injury shall be based upon a day of eight hours.

27. Not more than fourteen days annual leave may be taken during the first six months of a service year. In case of illness or injury in the first six months, to cover which no annual leave remains to the employee's credit, the time lost will be charged against the annual leave remaining for the year, and payment will be made after completing ten months of the service year. After the entire twenty-four days annual leave has been used, additional leave in that service year on account of illness or injury will be deducted from the cumulative leave for that year and when the cumulative leave becomes due the employee will be paid.

28. After exhausting both annual and cumulative leave for the year, additional absence on account of illness or injury will be without pay, except such compensation as may be prescribed by law for employees receiving personal injuries.

CUMULATIVE LEAVE.

29. Thirty days cumulative leave will be allowed each employee paid on a monthly or annual basis for each year of his service, and twenty days to each employee paid on an hourly basis. This leave will be due after completing ten months' service each year and may be taken when the employee's service can be spared. It may be taken annually or left to accumulate to the credit of the employee, provided, however, that the maximum number of days leave with pay of all kinds which may be granted at any one time or which may be commuted into a cash payment at termination of service is 120.

30. After cumulative or annual leave is earned and due it may be taken at such times and in such numbers of days as may be satisfactory to the Governor.

31. Leave taken after the close of the service year in which it was earned shall be paid for at the rate of pay received at the end of the tenth month of the service year in which the leave was earned. When an employee enters on a leave of absence which consists of or includes annual leave earned in the same year in which he enters on the leave, such annual leave shall be paid for at the rate received by the employee when he entered on the leave.

32. In case an employee serves part of a year on the monthly or annual basis and part on the hourly basis, he will be allowed twenty days cumulative leave, except that if he has served eight months or more on the monthly or annual basis during the year he will be granted thirty days cumulative leave.

TRAVEL LEAVE.

33. Employees who travel to points outside the tropics, when on cumulative leave, will be allowed seven days additional leave (or travel leave) with full pay, provided the total of all leave with pay granted shall not exceed 120 days. Travel leave may be allowed approximately once a year and is not cumulative.

34. Employees will be compensated for travel leave at the rate earned when cumulative leave last became due.

GENERAL PROVISIONS.

35. After accumulating leave of all kinds amounting to 120 days, an employee ceases to earn additional cumulative leave until he is granted all or part of the cumulative leave already earned, unless he shall enter on cumulative leave within two months thereafter, or be ordered by the Governor to defer taking leave for official reasons.

36. When an employee's service is terminated, a cash payment in commutation of leave will be made to him for the number of days cumulative leave due, plus the annual leave due. In the event of his death his estate will be paid the sum due.

37. Employees must report from leave within one week after the authorized leave expires or forfeit pay for the leave. In case of unavoidable delay, the Governor will decide whether the circumstances warrant an exception to this rule.

38. No restrictions are placed on the localities where leave may be spent.

39. Any employee transferred from the present force to the permanent operating force will be paid at the time of transfer, in addition to his

regular compensation, the amount he would have received in payment for leave had he been separated from the service at the time of transfer.

40. Leave may be taken only at the convenience of heads of departments, who may direct an employee to accumulate his leave if necessary for the conduct of the work.

41. Leave without pay may be granted by the Governor to all employees, including laborers, for such period as may be prescribed by him.

OFFICE HOURS AND HOURS OF LABOR.

42. Office hours and hours of labor will be fixed by the Governor within the limits prescribed by law.

This order shall take effect on and after the 31st day of December, 1916, and shall apply to all classes of leave with pay earned and due as of that date and thereafter.

WOODROW WILSON

THE WHITE HOUSE,
15 January, 1917.

[No. 2514.]